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Johnson III
Louis

RETURN TO RE

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My dear Mr. Secretary:

Reference is made to your letter of July 21, 1950, with which you enclosed a copy of a memorandum of the same date from the Joint Chiefs of Staff setting forth suggested changes, concurred in by you, in a draft aide-memoire prepared by this Department in reply to an aide-memoire of July 7, 1950 from the Chinese Embassy in regard to the mission of the Seventh Fleet.

Following the receipt of your letter, the entire question was discussed between representatives of our two Departments. It developed from these discussions that upon two points, that is, "visit and search" by the Chinese Navy and representations to the British Government with regard to shipments of military supplies, the conferees were unable to reach complete agreement.

After renewed consideration of the matter, this Department now proposes the following text in reply to point 3 of the Chinese aide-memoire:

> "3. The United States Government considers that the agreement of the Chinese Government to the request of President Truman that the Chinese Government 'cease all air and sea operations against the mainland' does not preclude 'visit and search' of Chinese shipping on the high seas under circumstances where such visit and search is related to the defense of territory controlled by the Chinese Government".

It will be

The Honorable
Louis Johnson,
Secretary of Defense.

DECLASSIFIED
E.O. 12065, Sec. 3-402
State Dept. Guidelines, June 12, 1979
By NLT-[illegible] NARS, Date 7-22-94

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It will be noted that this modified draft restricts operations to Chinese shipping, as requested in the reference Chinese aide-memoire, but does not particularize on the questions of denial of maritime access to the mainland and offensive operations in mainland territorial waters.

Our most serious objection to the modification made by the Joint Chiefs would be the inclusion of All shipping in the "visit and search" authorization, rather than Chinese shipping only. If foreign flag vessels were to be detained, searched, and possibly diverted, this Government would probably run into difficulty with the British and other members of the United Nations in connection with the general Chinese problem. Indeed, a probable practical effect would be the withdrawal by the British of certain of their naval units now operating in Korean waters to provide protection for their merchant shipping to Chinese mainland ports. The effect of such authorization would also be to enable the Chinese Navy to resume measures to carry out by force or by threat of force the Chinese Government's "port closure" orders, which we have never recognized as being legal, under the aegis of the President's directive.

The Department's draft reply to point 3 is based upon its interpretation of the President's statement of June 27 respecting sea operations by the Chinese Navy. If, however, despite the above explanation of our position, there are military considerations which would make it necessary for us to agree that the Chinese should carry out "visit and search" operations of so extensive a character, I should appreciate being informed of them.

As to point 4, there are specific political reasons which make it desirable to omit from any statement to the Chinese mention of our action vis-a-vis other governments, as would be the case if the clause suggested by the Joint Chiefs were included. The whole question of shipments of strategic materials to Communist China and North Korea is being actively pursued with the concerned friendly Governments. The subject matter and the fact of our approaches, however, are placed in a highly classified

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category, and it would be inconsistent with our general understanding with those Governments to indicate to outside parties the character of such discussions. There is a high probability that information of this character would become known shortly after communication to the National Government and thus jeopardize our present satisfactory arrangements with the British in this regard.

As this Department attaches a high degree of urgency to an expeditious settlement of these matters, to make it possible that the Chinese Government may be appropriately informed, I should appreciate receiving your views at your earliest convenience.

Sincerely yours,

DEAN ACHESON

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7-28-50

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A true copy of the signed original.

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